

This agreement is entered into on by and between:

VIETTEL ECOMMERCE LIMITED (trading as HALOPESA) a private limited company incorporated in the United Republic of Tanzania under the companies Act, 2002 (Cap 212) with number of incorporation certificate: 124938. Licensed by the Bank of Tanzania (BOT) to operate as an electronic money issuer within the United Republic of Tanzania with its registered offices situated at 10th Floor, Tanzanite Park, New Bagamoyo Road, and P.O. Box 34716, Dar es Salaam. (Here in referred to as “VTE”).

And

Agent Name:

Representative Name:

ID Type:

ID No:

Email:

Business License:

TIN:

Agent Halotel No:

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Contact No:

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Business Address:

(Herein referred to as “**Agent**”)

VTE and the Agent are herein referred to as “**Party**” individually and jointly as “**Parties**”

NOW, THEREFORE, in consideration of the mutual promises herein contained, the parties hereto agree as follows:

1. APPOINTMENT

1.1 The VTE hereby appoints the Agent, and the Agent is willing to provide HALOPESA services of VTE. This agreement may not be assigned or transferred in any other way by either parties without the prior consent of the other parties.

1.2 The Agent shall work as an independent contractor with no employer-employee relationship of any kind whatsoever with the VTE.

1.3 The Agent can be transferred from one Super-Agent to another based on Super-Agent KPI and/or location of an Agent.

2. TERM AND RENEWAL

2.1 This Agreement will last for one (01) year from the date the Agent has dialed *150*88# and set up a new PIN to activate HALOPESA AGENT ACCOUNT.

2.2 It will be renewed automatically (with full rights) for an additional period of one (01) year in case of no termination notice is served to the Agent as stipulated in Article 5.

3. COMMISSION AND PAYMENT

3.1 All commission paid to agents will be VAT exclusive and will be subjected to a deduction

Agent name

Signature

Date

of withholding tax which is to be paid to the relevant taxing authorities.

3.2 VTE shall be entitled to recover or retain from the Agent any bonuses, rebates and/or commissions paid or which would otherwise be payable by VTE if in VTE's reasonable opinion, such bonuses, rebates and/or commissions are not due and payable because of gross negligence, fraud, misrepresentation or non-bona fide connections by the Agent.

3.3 VTE reserves the right to unilaterally increase or reduce or change or modify the commission at any time without consulting or obtaining consent or agreement of the agent. VTE will communicate any of said changes through the HALOTEL website, Super-Agent in charge or to agent directly.

4. TERMINATION

4.1 VTE has the right at its own discretion to terminate the agreement by serving a seven (07) Days' notice to the Agent through appointed Super-Agent or in person.

4.2 VTE retain the right to immediately suspend, block commission or/and terminate the agreement once an agent is suspected or/and proven to do fraudulent transactions as defined by VTE.

4.3 VTE retain the right to immediately terminate the agreement when the agent fail to meet set KPI targets for 3 months consecutively.

4.4 VTE retain the right to immediately terminate the agreement when the agent is in breach of the agreement or any applicable law or regulation, and/or when agent inappropriately conducts itself.

4.5 VTE shall not be liable for any costs, loss, and liability or damage whether direct, special or consequential, howsoever and whomsoevers arising from any suspension or termination of this agreement.

4.6 The Agent will be entitled to terminate the Agreement by serving a seven (07) day written notice to the VTE in case the VTE fails to pay the Commission to the Agent as stipulated under the policies.

4.7 Otherwise, the Agreement will be terminated by mutual agreement by both Parties.

4.8 Upon termination of the Agreement, the Agent shall return all equipment and products formerly supplied to him/her by the VTE and will receive commission earned to the date of termination.

4.9 Upon termination of the Agreement, the Agent shall have no claim against VTE for compensation for loss of distribution or any other rights, loss of goodwill or any similar loss.

5. DISPUTE RESOLUTION

5.1 This Agreement will be subjected to and made in accordance with the laws of Tanzania.

5.2 Parties agree that in case of any dispute, the dispute will be amicably resolved via agreement and negotiation between both Parties. When the Parties fails to do so, the dispute will be settled in a competent court and in compliance with the laws of Tanzania.

This agreement constitutes the entire agreement between parties and supersedes any previous agreement or relationship of whatsoever nature between parties in respect of the Halopesa service.

ACCEPTANCE OF TERMS AND CONDITIONS:

By signing hereunder, the Agent signifies its acceptance of and adherence to the terms and conditions specified herein and any Annexure hereto and those to be issued by VTE from time to time during the pendency of this agreement.

Signed for and on behalf of the Agent in the manner and on dates appearing herein.

Signature:

Name:

Date:

Agent name

Signature

Date

ANNEX 1: TERMS AND CONDITIONS

1. AGENT OBLIGATION

- 1.1. To offer Halopesa services to customers on a nonexclusive basis for the duration of this agreement.
- 1.2. To ensure that every customer signs the logbook upon successful completion of a transaction.
- 1.3. To provide enough space to display and maintain VTE signboard at the place of business during the term of the Agreement.
- 1.4. To comply with AML procedures, guidelines, policies, instructions, KPIs and/or orders issued by VTE from time to time and communicated to the Super Agent on official Halotel website - link: <https://halotel.co.tz/halopesa/terms-conditions>
- 1.5. To comply with all laws and bylaws and any other regulations issued by any competent authority in relation to the operations.
- 1.6. To compensate the VTE for any damage, loss, destruction to HALOPESA services of the VTE or hold the VTE harmless from any claim, complain, lawsuit against the VTE from any third party with regard to HALOPESA services due default, negligence of the Agent.
- 1.7. The agent shall keep proper records in relation to its provision of HALOPESA service and shall upon request by VTE or through appointed Super-Agent promptly submit such records to the VTE or appointed Super-Agent.
- 1.8. Agent should keep a secret his/her PIN for transactions. The agent will be responsible for all transactions undertaken using its PIN. The agents shall indemnify and keep VTE indemnified at all times against any and all costs, expenses, actions, claims, demands and damages howsoever and whensoever arising as a result of the wrongful use of the PIN.
- 1.9. Not to cede, delegate and/or assign any of its rights and/or obligations arising out of this agreement without the prior written consent of the VTE.
- 1.10. The Agent acknowledges that all records lists and information pertaining to clients and files and other VTE data and information related to its business (hereinafter collectively "Confidential Information") are valuable assets of VTE and undertakes that Agent shall not, during the term of this Agreement or any time thereafter, disclose in any third party the Confidential Information.
- 1.11. The Agent shall not carry out any transaction with any Customer without receiving, and checking with reasonable diligence, the required customer identification material, as outlined in the HALO PESA Manual. The Agent shall decline any application if the Agent is not satisfied with proof of the Customer's identity.
- 1.12. To maintain a sufficient balance in the Agent's HALOPESA Account to ensure that all transfer Transactions initiated with the Agent can be honored.
- 1.13. All Equipment supplied to the Agent by VTE shall remain the property of VTE.
- 1.14. To perform other activities assigned by the VTE.

2. VTE OBLIGATION

- 2.1. To pay a Commission to the Agent in consideration for each successful un-fraudulent Transaction and achievement of Key Performance Indicators as communicated to the Agent and as may be amended in writing by VTE from time to time.
- 2.2. To notify the Agent of the customer service tariffs and transactions limits applicable from time to time through official HALOTEL website, Super-Agent or/and in person.

Agent name

Signature

Date

ANNEX 2: AGENT COMMISSION

NOTE: Amount is subjected to withholding tax deduction

AMOUNT RANGE (TSH)		CASHIN (TSH)	WITHDRAW (TSH)
500	999	25	-
1,000	1,999	38	244
2,000	2,999	40	244
3,000	3,999	67	244
4,000	4,999	100	244
5,000	5,999	122	244
6,000	7,999	200	244
8,000	9,999	211	289
10,000	19,999	244	378
20,000	29,999	289	378
30,000	39,999	289	378
40,000	49,999	289	378
50,000	99,999	378	567
100,000	199,999	556	811
200,000	299,999	778	1,544
300,000	399,999	978	1,800
400,000	499,999	1,389	2,333
500,000	599,999	1,500	2,444
600,000	699,999	1,556	2,611
700,000	799,999	1,611	2,667
800,000	899,999	1,722	2,778
900,000	1,000,000	1,833	2,889
1,000,001	3,000,000	1,833	2,889

FRAUD CONTROL LIMITS

#	TYPE OF LIMITATION	Limit	Action control
1	Agent cash in to same customer	3 transactions per day	Block commission
2	Agent deposit to same customer customers with same amount	5 minutes	Block transaction
3	Customer receives next cash in from agent	2 minutes	Block transaction
4	Agent cash in continuously	1 minute	Block transaction

Note: VTE retain the right to update, modify or change these control without consent from agent.

KEY PERFORMANCE INDICATORS

Month	1st	2nd	3rd	4th	5th	6th	7th	8th	9th	10th	11th	12th
Cash In/day	2	3	4	5	5	6	6	7	7	8	8	10
Cash Out/day	2	3	4	5	5	6	6	7	7	8	8	10
E-MONEY (TSH)	50,000	70,000	80,000	80,000	80,000	100,000						

Note: VTE retain the right to block or suspend agents if they fail to meet the KPI targets.

Agent name

Signature

Date